

CV-26-001531 GONZALEZ, MARGARITA GUTIERREZ vs CENTRAL VALLEY CARDIOVASCULAR MEDICAL GROUP INC – a) Defendant’s Demurrer to Plaintiff’s Complaint for Damages – SUSTAINED, with leave to amend. b) Defendant’s Motin to Strike Punitive Damages – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2026-08-03

Motion: a) The Court finds that the Complaint fails to state sufficient facts supporting the challenged 2nd and 3rd causes of action as against Defendant CVMG. (Code Civ. Proc. § 430.10(e).) The Court will grant leave to amend in this instance, despite the fact that Plaintiff did not demonstrate how the pleading could be amended to survive demurrer. Plaintiff shall submit her amended pleading within 20 days. b) The Court notes that Plaintiff does not oppose an order striking the challenged punitive damage allegations at this stage, subject to a future motion for leave to seek such damages. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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